

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

ORDER NO. 10:

CONSTRUING CLAIM TERMS

(June 15, 2026)

This order addresses the claim construction issues raised by the parties.

BACKGROUND

The Commission instituted this investigation to determine whether certain wearable devices infringe four patents asserted by Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. 91 Fed. Reg. 2153 (EDIS Doc. ID 871324). The respondents are Ouraring, Inc. and Ōura Health Oy. *Id.* The parties filed a joint claim construction chart and claim construction briefs, in which they identify three disputed terms and no agreed constructions. Joint Chart (EDIS Doc. ID 880312); Samsung Br. (EDIS Doc. ID 881026); Samsung Reply (EDIS Doc. ID 882533); Oura Br. (EDIS Doc. ID 881025); and Oura Reply (EDIS Doc. ID 882521). Samsung relies on an expert declaration from Dr. Darrin Young, whom Oura deposed. Samsung Br., Ex. 6 (Young Decl.) and Oura Reply, Ex. 8 (Young Dep.). Oura relies on an expert declaration from Dr. Tajana Rosing, whom Samsung did not depose. Oura Br., Ex. 1 (Rosing Decl.) and 6/3/2026 Tr. at 7:14–18 and 50:24–51:5 (EDIS Doc. ID 884186). There was a claim construction hearing at which the parties relied on demonstratives. 6/3/2026 Tr. (EDIS Doc. ID 884146); Samsung Demons. (EDIS Doc. ID 883963); and Oura Demons. (EDIS Doc. ID 883939).

LEGAL STANDARDS

It is a bedrock principle of patent law that a patent's claims define the invention for which a patentee is granted the right to exclude. *Phillips v. AWH Corp.*, 415 F.3d 1303, 1312 (Fed. Cir. 2005) (en banc). "[T]here is no magic formula or catechism for conducting claim construction." *Id.* at 1324. Instead, courts attach weight to appropriate sources "in light of the statutes and policies that inform patent law." *Id.*

A claim term typically receives its ordinary and customary meaning, which is the meaning the term would have to one of ordinary skill in the art at the time of invention after reading the entire patent. *Id.* at 1312–13 and 1321. A patent's specification "is always highly relevant to the claim construction analysis. Usually, it is dispositive; it is the single best guide to the meaning of a disputed term." *Id.* at 1315 (internal citation and quotation omitted).

Courts "also consider the patent's prosecution history, if it is in evidence." *Id.* at 1317 (cleaned up). The prosecution history, which is intrinsic evidence, is "the complete record of the proceedings before the PTO and includes the prior art cited during the examination of the patent." *Id.* "[T]he prosecution history can often inform the meaning of the claim language by demonstrating how the inventor understood the invention and whether the inventor limited the invention in the course of prosecution, making the claim scope narrower than it would otherwise be." *Id.* "[B]ecause the prosecution history represents an ongoing negotiation between the PTO and the applicant, rather than the final product of that negotiation, it often lacks the clarity of the specification and thus is less useful for claim construction purposes." *Id.*

For some terms, a court "will need to look beyond the patent's intrinsic evidence and to consult extrinsic evidence in order to understand, for example, the background science or the meaning of a term in the relevant art during the relevant time period." *Teva Pharms. USA, Inc. v.*

Sandoz, Inc., 574 U.S. 318, 331 (2015). Extrinsic evidence is “all evidence external to the patent and prosecution history, including expert and inventor testimony, dictionaries, and learned treatises.” *Phillips*, 415 F.3d at 1317 (internal citations and quotations omitted).

While expert testimony can be useful “to ensure that the court’s understanding of the technical aspects of the patent is consistent with that of a person of skill in the art,” such testimony is “generated at the time of and for the purpose of litigation and thus can suffer from bias that is not present in intrinsic evidence.” *Id.* at 1318. For at least that reason, extrinsic evidence “is unlikely to result in a reliable interpretation of patent claim scope unless considered in the context of intrinsic evidence.” *Id.* at 1319. Where the intrinsic record unambiguously describes the scope of the patented invention, reliance on extrinsic evidence is improper. *See id.* at 1324.

A patent’s claims must “particularly point[] out and distinctly claim[] the subject matter which the inventor regards as the invention.” 35 U.S.C. § 112(b). A claim is indefinite if, when “read in light of the specification” and “prosecution history,” it “fail[s] to inform, with reasonable certainty, those skilled in the art about the scope of the invention.” *Nautilus, Inc. v. Biosig Instruments, Inc.*, 572 U.S. 898, 901 (2014). The “reasonable certainty” standard strikes a “delicate balance,” “afford[ing] clear notice of what is claimed” while recognizing language’s “inherent limitations.” *Id.* at 909, quoting *Festo Corp. v. Shoketsu Kinzoku Kogyo Kabushiki Co.*, 535 U.S. 722, 731 (2002). The definiteness requirement thus “mandates clarity, while recognizing that absolute precision is unattainable.” *Id.* at 910.

DISCUSSION

The disputed terms are in claims of two of the four asserted patents, U.S. Patent Nos. 10,231,675 and 10,642,359. The ’675 and ’359 patents are in different families and do not share a common specification. Because each claims priority to applications filed after

September 16, 2012, each is subject to the AIA version of the Patent Act. Leahy-Smith America Invents Act, Pub. L. No. 112-29, § 4(c), 125 Stat. 284, 296 (2011).

I. Level of Ordinary Skill

The parties agree that one of ordinary skill would have had “at least a four-year degree in electrical engineering, mechanical engineering, biomedical engineering, ... or related field of study, or equivalent experience, and at least two years’ experience in academia or industry.” Samsung Br. at 4 and 5 and Oura Br. at 7. Samsung adds that the four-year degree may have been in “optical engineering” and that the academic or industry experience would have involved studying or developing “sensor systems.” Samsung Br. at 5. Oura adds that the four-year degree may have been in “computer engineering”; the academic or industry experience would have involved studying or developing “wearable monitoring devices such as non-invasive biosensors”; and “[a]dditional work experience can make up for a lack of education, and additional education can make up for a lack of work experience. [One of skill] could have also worked as part of a multidisciplinary team and would have drawn upon not only his or her skills, but also taken advantage of specialized skills of others on the team.” Oura Br. at 7.

The parties agree that the differences in their definitions do not affect the claim construction disputes. 6/3/2026 Tr. at 6:7–17. Because the parties have “not shown that there are any meaningful differences between [their] proposed definition[s] of a person of ordinary skill ... or that the outcome of this case would ... be[] different based on which definition [is] used,” this order does not make a specific finding on the level of ordinary skill. *Genzyme Therapeutic Prods. Ltd. P’ship v. Biomarin Pharm. Inc.*, 825 F.3d 1360, 1371–72 (Fed. Cir. 2016).

II. Construction of Disputed Claim Terms

The parties dispute the constructions of three claim terms.

A. The '675 Patent

Two of the disputed terms are in the '675 patent, one in independent claim 13 and the other in claim 15, which depends from claim 13.

a. Claim 13

Claim 13 recites a method of using a motion sensor to determine whether a user is wearing an electronic device, activating a biometric sensor based on information from the motion sensor, detecting biometric information, and deactivating the biometric sensor in response to information from the motion sensor. The full text of the claim is below, emphasizing the disputed element:

13. A method comprising:
determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;
acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body;
activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;
detecting a biometric information of the user using the activated at least one second sensor;
during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor; and
in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.

Oura argues that claim 13 is indefinite. Samsung disagrees and proposes a construction.

Disputed Term	Samsung's Proposal	Oura's Proposal
acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time	Not indefinite. "second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic	Indefinite

Disputed Term	Samsung's Proposal	Oura's Proposal
shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body	device is worn on a part of the user's body" means: second period of time which begins: (i) before the first period of time has ended when it is determined that the electronic device is worn, or (ii) immediately after the first period of time has ended when it is determined that the electronic device is worn	

Joint Chart at 1 and 2 and *see* Samsung Br. at 5–10; Samsung Reply at 2–9; Samsung Demons. at 4–37; Oura Br. at 8–15; Oura Reply at 3–12; and Oura Demons. at 3–20.

Oura asserts that claim 13 fails to inform one of skill about its scope with reasonable certainty for two reasons: (1) it does not “define the ‘first period of time’ and the ‘second period of time’ for which the temporal comparison of ‘shortly before’ or ‘immediately after’ must be assessed,” and (2) “shortly before” and “immediately after” are indefinite terms of degree. Oura Br. at 8. Clear and convincing evidence does not support Oura’s indefiniteness challenge.

The structure of claim 13 is somewhat unorthodox. It recites “a second period of time” before “a first period of time” and introduces the “first period of time” in the second claim element, even though the first period of time relates to activity recited in the first claim element. The color annotations to the first three claim elements below illustrate this correspondence:

determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;

acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body;

activating at least one second sensor based on at least a part of the first information on the motion of the electronic device

Properly understood, the first three elements of claim 13 thus convey the following:

1. During a first time period, using a first electronic device sensor to determine whether the device is worn on a part of a user's body.
2. When the device is determined as worn, acquiring information on device motion using the first sensor for a second time period that begins ...
 - a. ... "shortly before" the first time period, or
 - b. ... "immediately after" the first time period.
3. Based on information about the device motion acquired during the second time period, activating a second sensor.

Significantly, the second time period will not begin if there is no wear determination. This is clear from the first-recited acquiring event, which is not triggered unless "it is determined that the electronic device is worn on a part of the user's body." That trigger informs when the second time period can start. According to the claim, that can be either shortly before or immediately after the first time period, within which a triggering event occurs. Because the second time period cannot begin before a triggering event, the second time period cannot be before the beginning of the first time period. As a result, "shortly before" the first time period means that the second time period can start before the first time period ends. In reciting "immediately after," the claim also allows the second time period to start after, immediately after, the first time period ends. Thus, if wear is determined during the first time period, the second time period can begin either (1) "shortly before" the end of the first time period or (2) "immediately after."

Oura disputes this understanding as "contrary to the express language in the claim." Oura Reply at 4–5 and Oura Br. at 15. According to Oura, claim 13 "establishes two distinct, but alternative, periods of time and requires that they occur sequentially and does not allow for an

overlap between the two distinct periods.” Oura Reply at 4–5. As explained, the claim language refutes Oura’s argument and allows for overlap of the first and second time periods.

The specification supports this understanding. It discloses that “the second period of time may be set to include the time point when the first period of time passes.” ’675 patent at 21:55–57 and 42:18–20. This expressly supports that the time periods can overlap. The specification also discloses embodiments in which information on device motion is acquired “for a second period of time shortly before and/or immediately after a first period of time ... passes from the time when the electronic device is worn”:

According to an embodiment, [a] memory may store instructions that configure the processor to: determine whether the electronic device is worn on (or close to) a part of the user’s body using the at least one first sensor; acquire information on the motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time selected (or specified) passes from the time when the electronic device is worn on (or close to) a part of the user’s body; and activate (operate or trigger) the at least one second sensor based on at least a part of the information on the motion.

’675 patent at 20:64–21:8 and *see id.* at 41:52–65. Consistent with the specification, the second time period begins after the wear determination *and* can start “shortly before” the first time period ends, thus supporting temporal overlap between the time periods.

Oura counters that unlike the passages above and claim 15, “Claim 13 does not use the phrase ‘the time point when the first period of time passes’ (or anything similar).” Oura Reply at 5. That distinction makes no difference. “The art of claiming sometimes involves drafting claims in a variety of ways to encompass the disclosed subject matter.” *Vascular Sols. LLC v. Medtronic, Inc.*, 117 F.4th 1361, 1370 (Fed. Cir. 2024). Even though claim 13 does not use the word “passes,” it nonetheless recites, as an alternative, overlap of the first and second time periods.

Oura also contends that “the claimed ‘first period of time’ and ‘second period of time’ are ‘facially subjective’” because “the language of the claim allows defining time periods by the status of the electronic device relative to the user” and “the specification fails to provide any guidance as to how to select or specify the first period of time.” Oura Br. at 10, quoting *Interval Licensing LLC v. AOL, Inc.*, 766 F.3d 1364, 1373 (Fed. Cir. 2014) and *see* Rosing Decl. at 23 (¶ 45). These arguments are unpersuasive.

The “first period of time” and “second period of time” are not facially subjective. Claim 13 recites that the first time period is when a wear determination is made. The second time period can start either shortly before or immediately after the first time period. The second time period cannot start without a wear determination and thus cannot start before the start of the first time period. Oura does not explain why defining periods of time relative to an objectively measurable event, a wear determination, is subjective. *See* Rosing Decl. at 23 (¶ 45). The claimed time periods and their relationship to one another are not like the term “unobtrusive manner” in *Interval Licensing*, which left the “claim language without an objective boundary.” 766 F.3d at 1373.

Oura’s argument that the specification must explain “how to select or specify” the first time period is misplaced. Oura Br. at 10–11. The first time period is not a subjective term. The claim specifically identifies its bounds, namely the period during which a wear determination is made. The scope of the claimed first time period is reasonably certain even if, as Oura’s expert contends, the specification does not delimit its start and end points. *Compare* Rosing Decl. at 23 (¶ 44), *with* Young Decl. at 8 (¶¶ 31 and 32).

The Supreme Court has explained that the definiteness requirement “seeks to guard against unreasonable advantages to the patentee and disadvantages to others arising from uncertainty as to their rights. The inventor must ‘inform the public during the life of the patent of the limits of the

monopoly asserted, so that it may be known which features may be safely used or manufactured without a license and which may not.” *Gen. Elec. Co. v. Wabash Appliance Corp.*, 304 U.S. 364, 368 (1938). Here, one of skill would be able to determine with reasonable certainty whether a method includes a first time period and second time period, as recited in claim 13. This is supported by Samsung’s infringement contentions, *see* Oura Br., Ex. 2 at 8 and 36, and Dr. Young’s opinions and testimony, *see* Young Decl. at 8 (¶ 31) and Young Dep. at 31:23–25.

“Shortly before and/or immediately after” are not “merely subjective” or “indefinite term[s] of degree,” as Oura contends. Oura Br. at 12 and 13. An “inventor need not define his invention with mathematical precision in order to comply with the definiteness requirement.” *Barrette Outdoor Living, Inc. v. Fortress Iron, LP*, 156 F.4th 1353, 1367 (Fed. Cir. 2025) (internal citation and quotation marks omitted). “For purposes of the definiteness inquiry, the problem patentees face by using descriptive words in their claims is not the potential breadth of those claims. It is whether the use of descriptive phrasing in the claim results in a claim that fails to inform, with reasonable certainty, those skilled in the art about the scope of the invention.” *Niazi Licensing Corp. v. St. Jude Med. S.C., Inc.*, 30 F.4th 1339, 1347 (Fed. Cir. 2022) (cleaned up). Indeed, the Federal Circuit has observed that “patentees often use descriptive words to avoid a strict numerical boundary to the specified parameter.” *Id.* (cleaned up).

The patentee appropriately chose to do so here. The specification states that the invention can “acquire data from at least one of the at least one first sensor and the at least one second sensor” and “change ... a period of time ... for activating (operating or triggering) the at least one second sensor based on at least a part of the data.” ’675 patent at 23:1–6. And in claim 13, activation of the second sensor depends on information (about device motion) acquired during the second time

period. One of skill would thus understand that the duration of “shortly before” and “immediately after” can vary. Oura acknowledges this:

For example, if the first period of time encompasses several days ... then a person of ordinary skill in the art may consider an event that occurred a few hours before or after the first period of time ended as meeting the “shortly before” or “immediately after” requirement. But should the length of the first period of time change, *e.g.*, from a few days to a few minutes, then it seems “shortly before” or “immediately after” would be measured in seconds and not hours.

Oura Br. at 12 and 13 and Rosing Decl. at 25 (§ 49). Oura does not identify any authority for the proposition that temporal terms like those here require fixed durations to be definite. “Definiteness does not require that a potential infringer be able to determine *ex ante* if a particular act infringes the claims.” *Nevro Corp. v. Boston Sci. Corp.*, 955 F.3d 35, 40 (Fed. Cir. 2020). Thus, what qualifies as “shortly before” or “immediately after” is not decided here and instead will be addressed with the parties’ infringement, domestic industry, and prior-art invalidity arguments.

Oura has not clearly and convincingly shown that claim 13 is indefinite. Consistent with the above discussion, Samsung’s proposed construction is adopted.

b. Claim 15

The parties’ dispute centers on the claimed “third period of time.” Claim 15 recites:

15. The method of claim 13, further comprising:
acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and
activating the at least one second sensor based on at least a part of the additional information.

Oura argues that claim 15 is indefinite. Samsung disagrees and alternatively offers a construction.

Disputed Term	Samsung's Proposal	Oura's Proposal
third period of time	Not indefinite. “third period of time” means: period of time that immediately follows the second period of time and during which additional information regarding the motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor	Indefinite

Joint Chart at 2 and *see* Samsung Br. at 10–13; Samsung Reply at 9–12; Samsung Demons. at 38–44; Oura Br. at 16–17; Oura Reply at 13–15; and Oura Demons. at 21–26.

After deactivating the second sensor per claim 13, claim 15 recites (1) using the first sensor during “a third period of time” to acquire additional information on device motion, and (2) based on the additional information, activating (or reactivating) the second sensor. Claim 15 also recites requirements for the “third period of time”: it must be “shorter than the first period of time” and start “immediately after the second period of time passes.”

Oura argues that “the specification and the prosecution history fail to provide objective boundaries for the claimed ‘first period of time’” and “therefore fail to provide the necessary disclosure for determining the required temporal relationship between the ‘first period of time’ and the ‘third period of time.’” Oura Br. at 16 and 17 and *see* Oura Reply at 14. The evidence does not support this. As detailed previously, Oura has not shown that claim 13 or its “first period of time” are indefinite. And Oura does not explain why one of skill, when considering a first time period and third time period (*e.g.*, in an accused or prior-art method) could not determine with reasonable

certainty whether the latter is shorter than the former. *Compare* Rosing Decl. at 28 (¶ 54), *with* Young Decl. at 12–14 (¶¶ 39–42 and 44).

Oura cites Samsung’s infringement contentions, arguing that they “demonstrate[] that the claimed third period of time is subject to the ‘unpredictable vagaries of any one person’s opinion,’” and that “Samsung’s inconsistent [litigation] positions illustrate that the claimed ‘third period of time’ lacks the required objective boundaries.” Oura Br. at 16 and 17 and Oura Reply at 13. Samsung’s positions do not demonstrate “inconsistent vagaries.” And if they are inconsistent, Oura can argue that to the extent it contests infringement.

Finally, to the extent that in an accused product the second time period is asserted to end after a user wakes up, that does not render the third period “subjective,” as Oura contends. Oura Br. at 17. As discussed, the claimed “second period of time” in claim 13 is not indefinite, and Oura does not explain why one of skill could not determine with reasonable certainty whether an asserted third period of time begins immediately after. *Id.* and *see* Rosing Decl. at 28 (¶ 55).

Oura has not clearly and convincingly shown that claim 15 is indefinite. No further construction is needed at this point.

B. The ’359 Patent

In the ’359 patent, the penultimate element of independent claim 14 recites “the biometric signal,” but the claim does not recite “a biometric signal” as an antecedent. The parties agree that there is a correctable error. Samsung Br. at 13 and Oura Br. at 18. They dispute, however, what the correction should be. Samsung would replace “biometric” with “biological,” and Oura would replace “the” with “a.” The parties also propose plain and ordinary meanings for their corrections. Their proposals are:

Disputed Term	Samsung’s Proposal	Oura’s Proposal
the biometric signal	the biological signal, whose plain and ordinary meaning is a signal that is associated with biological information of the user	a biometric signal, whose plain and ordinary meaning is a signal relating to the identification of an individual based on physical characteristics, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight

Joint Chart at 2 and *see* Samsung Br. at 13–19, Samsung Reply at 12–17, Samsung Demons. at 45–64, Oura Br. at 18–20, Oura Reply at 15–19, and Oura Demons. at 27–42.

“The Commission, like district courts, has the authority to correct obvious and minor clerical errors, deriving such authority from its claim construction responsibilities.” *Certain Bio-Layer Interferometers*, Inv. No. 337-TA-1344, Comm’n Op. at 25–28 (Aug. 24, 2023) (EDIS Doc. ID 803150). The Commission’s evaluation of whether an asserted error in a patent claim is correctible, and how to correct it, follows the framework laid out in *Novo Industries, L.P. v. Micro Molds Corp.*, 350 F.3d 1348 (Fed. Cir. 2003); *Energizer Holdings, Inc. v. International Trade Commission*, 435 F.3d 1366 (Fed. Cir. 2006); and *Pavo Solutions LLC v. Kingston Technology Co.*, 35 F.4th 1367 (Fed. Cir. 2022). *Id.* at 12 and 16–25.

Consistent with that framework, the Federal Circuit recently explained that claim language correction is appropriate for “an obvious and correctable error in [a] claim, the construction of which is not subject to reasonable debate.” *Canatex Completion Solutions, Inc. v. Wellmatics, LLC*, 159 F.4th 39, 46 (Fed. Cir. 2025). The error “must be evident from the face of the patent, *i.e.*, obvious, as determined from the point of view of one skilled in the art.” *Id.* (same). “[C]orrection is appropriate only if (1) the correction is not subject to reasonable debate based on consideration of the claim language and the specification and (2) the prosecution history does not suggest a different interpretation of the claims.” *Id.* (same, and cleaned up). This “demanding

standard for judicial correction via claim construction, when rigorously applied as it must be, takes account of the primacy of the ‘public notice function of patents’” and “determines the meaning the claim always had.” *Id.*, quoting *Phillips*, 415 F.3d at 1319.

Here, the error is evident from the face of the patent. The second-to-last element of claim 14 recites a controller configured to “determine, as a valid signal, at least a portion of *the biometric signal* that is determined to correspond to the determined select period” (emphasis added). “The phrase at issue plainly requires an antecedent,” but no “biometric signal” “has previously been mentioned in the claim.” *Canatex*, 159 F.4th at 47. The parties agree that the lack of antecedent basis demonstrates an apparent error. *See Samsung Br.* at 13 (“Reading Claim 14 itself, the specification, and other claims, it is clear that the recitation of ‘the biometric signal’ in Claim 14 is an obvious, minor clerical or typographical error ...” (emphasis removed)) and *Oura Br.* at 18 (“The constructions proposed by both parties seek to cure the error that exists in the ’359 Patent—the lack of an antecedent basis for the term ‘the biometric signal.’”).

Additional elements of claim 14, similar terms in other claims, and the specification demonstrate, without reasonable debate, what the mistake is and how it should be corrected. Claim 14 recites (bracketed element labels added):

- 14. A wearable device comprising:
 - [a] a motion sensor;
 - [b] a biological sensor; and
 - [c] a controller configured to:
 - [d] obtain a movement signal of an object external to the wearable device using the motion sensor;
 - [e] obtain a biological signal of the object using the biological sensor;
 - [f] determine a select period, of the movement signal, that meets a specified condition;
 - [g] determine, as a valid signal, at least a portion of the biometric signal that is determined to correspond to the determined select period; and
 - [h] perform a specified function using the valid signal.

The parallelism between elements [a], [d], and [f], on the one hand, and elements [b], [e], and [g], on the other, makes plain that “the biometric signal” in element [g] should be “the biological signal.” Element [a] recites “a motion sensor,” element [d] recites “obtain[ing] a movement signal ... using the motion sensor” from element [a], and element [f] recites “determin[ing] a select period, of the movement signal” from element [d]. Following that pattern, element [b] recites “a biological sensor,” element [e] recites “obtain[ing] a biological signal ... using the biological sensor” from element [b], and element [g] should—but, due to the agreed-on error, does not—recite “determin[ing] ... at least a portion of the bio[logical] signal.” This is shown below:

Elements [a], [d], and [f]	Elements [b], [e], and [g]
[a] a motion sensor	[b] a biological sensor
[d] obtain a movement signal of an object external to the wearable device using the motion sensor	[e] obtain a biological signal of the object using the biological sensor
[f] determine a select period, of the movement signal, that meets a specified condition	[g] determine, as a valid signal, at least a portion of the biometric signal that is determined to correspond to the determined select period

In addition to a missing antecedent, “the biometric signal” plainly stands out as incorrect, and the parallelism of the other claim elements unambiguously demonstrates the correction as “the biological signal,” which has its antecedent in element [e].

The materially parallel structures and terms of the other independent claims further demonstrates the plainness of the error in claim 14 and its correction. Other than claim 14, every independent claim recites a “a biological sensor” used to obtain “a biological signal” and a controller configured to make determinations about and/or perform actions using “the biological

signal.” No other claim uses the word “biometric.” Pertinent elements of the independent claims are below along with their correspondence to claim 14:

Claim 14		Claim 1	
[b]	a biological sensor	[b]	a biological sensor
[e]	obtain a biological signal of the object using the biological sensor	[d]	obtain a movement signal of an object using the motion sensor, and a biological signal of the object using the biological sensor
[g]	determine, as a valid signal, at least a portion of the biometric signal that is determined to correspond to the determined select period	[e]	determine, based on an analysis of the movement signal, whether to perform a specified function of the wearable device using the biological signal
		[f]	perform the specified function using a select portion of the biological signal obtained during a select period, of the movement signal, determined to correspond to a specified condition
Claim 7		Claim 21	
[b]	a biological sensor	[b]	a biological sensor of the one or more wearable devices
[e]	obtain a biological signal of the object using the biological sensor	[e]	obtain, based on biological information from the biological sensor, a biological signal of the object
[g]	perform a specified function using a select portion of the biological signal corresponding to the period	[g]	determine whether any portions the biological signal correspond to the period and meet a specified value condition
		[h]	perform, in response to at least one of the one or more portions of the biological signal being determined to correspond to the period, a specified function of at least one of the one or more wearable devices and/or an external device respectively dependent on the movement signal

The specification confirms the correction. It repeatedly discloses a “biological signal” and that a “second signal may include biological information obtained by one or more biosensor[s].”

See, e.g., '359 patent at 1:56–68, 2:19–21, 2:42–57, 2:66–3:3, 3:52–62, 5:14–17, 9:24–25, 10:56–59, and Fig. 3. It never uses the word “biometric.”

To support its proposed correction, Oura observes that the specification discloses using a “second signal” to control an “external device ... such as a mobile device, a television (TV) screen, a digital versatile disc (DVD) player, a radio, a heating thermostat, a vehicle door, and the like.” *Id.* at 6:64–7:2 and 8:26–29 and *see* Oura Demons. at 30, 32, 35, and 36. Additional passages refer to controlling “an air conditioner, a computer, a refrigerator,” “a light, a curtain, a window, a door lock device,” and “a remote controller of a vehicle to start the vehicle,” and to using the signal “as an ID signal to make a payment.” '359 patent at 7:11–29 and Fig. 1. According to Dr. Rosing, “[w]hile biometric information is not expressly disclosed in the specification, [one of skill] would understand the need, at least in some instances, to use biometric information to verify the identity of a user prior to allowing control and operation of an external device (*e.g.*, mobile phones, heating thermostats, and entry to vehicles).” Rosing Decl. at 30 (¶ 60), citing '359 patent at 6:64–67.

But none of this supports that the claim should be corrected to recite “a biometric signal.” For the embodiments that Oura and Dr. Rosing cite, the specification states that “[t]he second signal may be a biosignal associated with *biological* information such as, for example, muscle contraction and muscle relaxation occurring in the target” or “a bio-electric/magnetic signal, a bio-impedance signal, and a bio-mechanical signal generated in association with a muscle.” '359 patent at 5:14–19 (emphasis added). It never refers to the second signal as a “biometric” signal.

Dr. Rosing cites several dictionaries to support her opinion that one of skill would understand the need to use identity-verifying information for some of the specification’s embodiments. Rosing Decl. at 30, n.1 (¶ 60). To the extent relevant, many of the cited dictionaries, however, principally or most broadly define “biometric” as “pertaining to the measurement of the

human body” and “biometrics” as “[t]he statistical study of biological phenomena”—not as limited to identity verification. *Oura Br.*, Ex. 5 at 2994 and Ex. 3 at 2988 and *see* Ex. 6 at 2998. To be sure, some of the dictionaries define “biometrics” as “[t]he science of discriminating individuals from accurate measurement of their physical features.” *Oura Br.*, Ex. 4 at 2991 and *see id.*, Ex. 7 at 3001 and 3002, Ex. 3 at 2988 (second definition), Ex. 5 at 2994 (definition “in security terms”), and Ex. 6 at 2998 (second definition). But one of skill would not reasonably understand this collection of varied and sometimes secondary definitions as casting doubt on what the intrinsic record makes exceedingly plain: the undisputedly erroneous “the biometric signal” should be corrected to “the biological signal” and not limited to signals for identity verification.

To the extent relevant, Samsung’s expert, Dr. Young, did not testify otherwise. *See Oura Reply* at 16 and 18, citing *Young Dep.* at 19:24–20:19, 27:8–30:14, and 40:12–25. Instead, he testified that “the ’359 patent talks about using biological signals,” explained that “[a] biometric signal is also a signal related to, for example, character and—characteristics of biological information,” assumed that Dr. Rosing’s declaration accurately quoted the dictionary definitions, and attempted to recall what some of the definitions were. *Young Dep.* at 19:24–20:19, 27:8–30:14, and 40:12–25.

The prosecution history of the ’359 patent does not suggest a different result. Contending otherwise, *Oura* points to one claim amendment, made in response to a non-final rejection, in which the applicant revised other terms but not “the biometric signal”:

15. (Currently amended) A wearable device comprising:
a motion sensor;
a biological sensor; and
a controller configured to:
~~obtain, with respect to an object external to the wearable device, a movement signal of the~~
~~an object external to the wearable device using the motion sensor; and~~
obtain a biological signal of the object using the biological sensor;
determine a select period of the movement signal that meets a specified condition;
determine, as a valid signal, at least a portion of the biometric signal that is determined to
~~correspond to the determined~~ corresponding to a select period that the movement is smaller than a
~~specified condition as a valid signal; and~~
perform a specified function using the valid signal.

Complaint, App'x A at 156 and *see* *Oura Br.* at 19.

Oura contends that the amendment makes clear that “Samsung understood it was claiming a ‘biometric signal.’” *Oura Br.* at 19. But Samsung was not claiming “a biometric signal.” And the fact that neither Samsung nor the Examiner noticed the mistake does not support that the claim should be corrected to recite “a biometric signal,” when that is inconsistent with claim 14, other claims, and the specification. Here, as in *Canatex*, there is an “obvious minor typographical [or] clerical error.” 159 F.4th at 46 and *see Pavo*, 35 F.4th at 1373–78. The recitation of “the biometric signal” should be “the biological signal.”

Oura alternatively argues that even if “the biometric signal” is corrected to “the biological signal,” the latter should be construed as “a signal that relates to ‘muscle contraction or muscle relaxation of a body part, such as a wrist or a heart.’” *Oura Reply* at 19, quoting *Rosing Decl.* at ¶ 60 (quoting ’359 patent at 3:56–58) and ’359 patent at 5:14–17 and *see Oura Demons.* at 39, citing ’359 patent at 3:52–64, 5:20–25, and 5:29–34. The claim language does not demand that construction. And every specification passage Oura cites is expressly exemplary. ’359 patent

at 3:52–64 (“*For example*, a sensor may include a biosensor that may be attached to body part ... *such as, for example*, a wrist ... to obtain a biological ... signal. *For example*, a biosensor may be able to detect signals generated by muscle contraction or muscle relaxation of a body part, *such as* a wrist or a heart.”) (emphasis added), *id.* at 5:14–17 (“for example”), *id.* at 5:20–25 (“may” obtain or detect a signal from muscle contraction or relaxation; “[i]n the event that the target 105 is a wrist”), and *id.* at 5:29–34 (“may”). The specification does not support the narrow construction Oura advocates.

The claim term “the biometric signal” should correctly read “the biological signal,” which is a signal associated with biological information of the user.

SO ORDERED.



Doris Johnson Hines
Administrative Law Judge